

Mool Chandra, Industrial Training v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 October 2019 · WRIT - C No. 33108 of 2019 · **Writ disposed by consent; petitioner to deposit Rs 37,619 forthwith and the balance of Rs 1,12,619 in three instalments of Rs 25,000 each (November–January), current bills to continue.**

HEADNOTE

Clause 6.14 of the U.P. Electricity Supply Code, 2005 empowers the Executive Engineer to realise electricity dues in instalments. Where the Executive Engineer failed to decide a pending instalment application and a recovery citation had issued, the High Court, with the parties' consent, directed the consumer to deposit Rs 37,619 forthwith and the balance in three monthly instalments of Rs 25,000, subject to regular payment of current bills.

FACTUAL SUMMARY

Mool Chandra, Industrial Training faced recovery of Rs 1,12,619 as electricity dues. A recovery citation dated 16 September 2019 was issued. The petitioner had applied to the Executive Engineer on 18 September 2019 seeking acceptance of those dues in instalments, but no order was passed on the application and recovery was instead served. Counsel for the petitioner was heard; counsel for respondent Nos. 2 and 3 accepted notice. The petitioner remained ready and willing to pay the entire dues in instalments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment realisation of electricity dues

HOLDING

Clause 6.14 of the U.P. Electricity Supply Code, 2005 empowers the Executive Engineer to realise electricity dues in instalments if necessary. Where the Executive Engineer failed to exercise that power despite a pending instalment application and the consumer was ready and willing to pay the entire dues in instalments, the Court disposed of the writ with the parties' consent by directing deposit of Rs 37,619 forthwith and the balance in three instalments of Rs 25,000 each payable in November, December and January, provided current bills continued to be paid regularly. ¶ 1